§ 14.663 *Banks or trust companies acting as guardians for veterans.* Banks or trust companies, corporate entities, acting as guardians for claimants may be represented before adjudicating agencies as authorized representatives of claimants by an officer or employee thereof, including a regularly employed attorney, if such employee or attorney represents the corporation in its fiduciary capacity but no fee may be allowed for such services under § 14.646.

This regulation is effective August 31, 1954.

[SEAL] J. C. PALMER,
Acting Deputy Administrator.

[F. R. Doc. 54-6800; Filed, Aug. 30, 1954; 8:45 a. m.]

TITLE 39—POSTAL SERVICE

Chapter I—Post Office Department

PART 34—CLASSIFICATION AND RATES OF POSTAGE

UNDELIVERABLE SECOND-CLASS MATTER

In § 34.63 *Undeliverable second-class matter* make the following changes:

1. Amend the last sentence of paragraph (d) (2) to read as follows: "When the copies bear the pledge of the sender to pay return postage, the portion of the page, envelope, or wrapper, shall not be detached, and after expiration of the 3 months' period the complete copy shall be returned to the sender rated with postage due at the transient second-class rate, computed on each individually addressed copy or package of unaddressed copies."

2. Amend the last sentence of paragraph (e) to read as follows: "When the copies bear the pledge of the sender to pay return postage, each complete copy beginning with the first one which is undeliverable as addressed, shall be returned to the sender rated with postage due at the transient second-class rate, as provided by paragraph (d) (2) of this section."

3. Amend paragraph (f) to read as follows:

(f) *Pledge of addressee or sender to pay forwarding postage.* When a change of address is other than a change of local address, and the addressee has filed a written guarantee either on Form 22 or otherwise to pay forwarding postage or when the copies bear the pledge of the sender to pay forwarding postage, the copies of second-class publications bearing the old address shall be forwarded to the new address for a period of 3 months rated with postage due at the transient second-class rate, computed on each individually addressed copy or package of unaddressed copies. Form 22-S shall be furnished to the addressee at the new address in the manner prescribed by paragraph (d) (1) of this section. If the addressee refuses to pay the postage due, the postmaster at the old address shall be requested by the postmaster at the new address to immediately discontinue forwarding the copies. When copies bearing the old address, but not the pledge of the sender to pay return postage, are received after the period of 3 months has expired, a notice shall be prepared and mailed to the sender in the manner prescribed by paragraph (d) (2) of this section. Copies bearing the old address which are received after the mailing of the notice shall be disposed of as waste (see §§ 6.22 and 43.46 of this chapter). When the copies bear the pledge of the sender to pay return postage, each complete copy beginning with the first one bearing the old address received after the period of 3 months has expired, shall be returned to the sender rated with postage due at the transient second-class rate, as provided by paragraph (d) (2) of this section.

(R. S. 161, 396, secs. 304, 309, 42 Stat. 24, 25, sec. 12, 65 Stat. 676; 5 U. S. C. 22, 369, 39 U. S. C. 246f)

[SEAL] ABE MCGREGOR GOFF,
The Solicitor.

[F. R. Doc. 54-6833; Filed, Aug. 30, 1954; 8:50 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix C—Public Land Orders

[Public Land Order 998]

CALIFORNIA

PARTIALLY REVOKING EXECUTIVE ORDER NO. 6361 OF OCTOBER 25, 1933

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Executive Order No. 6361 of October 25, 1933, withdrawing certain public lands in California for classification and pending determination as to the advisability of including such lands in a national monument, is hereby revoked so far is it affects the following-described land:

SAN BERNARDINO MERIDIAN

T. 3 S., R. 5 E.,
Sec. 2, N½SW¼ and SE¼SW¼.

The tracts described aggregate 120 acres.

This revocation is made in furtherance of an exchange under section 8 of the act of June 28, 1934, as amended by section 3 of the act of June 26, 1936 (48 Stat. 1272, 49 Stat. 1976; 43 U. S. C. 315g), by which the offered lands will benefit a Federal land program. This restoration is, therefore, not subject to the provisions contained in the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279-284), as amended, granting preference rights to veterans of World War II and the Korean conflict and others.

ORME LEWIS,
Assistant Secretary of the Interior.

AUGUST 25, 1954.

[F. R. Doc. 54-6816; Filed, Aug. 30, 1954; 8:47 a. m.]

[Public Land Order 999]

NEW MEXICO

PARTIALLY REVOKING EXECUTIVE ORDER NO. 4208 OF APRIL 20, 1925, WHICH RESERVED PART OF THE FORT WINGATE MILITARY RESERVATION AS THE ZUNI DISTRICT OF THE MANZANO (NOW CIBOLA) NATIONAL FOREST

By virtue of the authority contained in the act of June 4, 1897 (30 Stat. 11, 36; 16 U. S. C. 473) and pursuant to Executive Order No. 10355 of May 26, 1952, and Section 9 of the act of June 7, 1924, c. 348 (43 Stat. 655; 16 U. S. C. 471, 505), it is ordered as follows:

Executive Order No. 4208 of April 20, 1925, reserving certain lands comprising a part of the Fort Wingate Military Reservation as the Zuni District of the Manzano (now Cibola) National Forest, is hereby revoked so far as it affects the following-described lands:

NEW MEXICO PRINCIPAL MERIDIAN

Beginning at the southwest corner of the Wingate Ordinance Depot (approximately southeast corner of lot 4, sec. 15, T. 14 N., R. 17 W., N. M. P. M.); thence,

Easterly, along the present southern boundary of the Wingate Ordinance Depot to a point on the common boundary of the north line of the Cibola National Forest and the south line of the Wingate Ordinance Depot, said point being 9 feet east of the North ¼ corner (stone monument) of unsurveyed sec. 23, T. 14 N., R. 17 W.

Easterly, 9,000 feet, continuing along the above-described boundary,

Southerly, 17,160 feet on a line approximately 1,089 feet east of the range line common to Rgs. 16 and 17 W., to the original south boundary of the Fort Wingate Military Reservation as established by Executive Order of February 18, 1870.

Westerly, 15,177 feet approximately, along the said original south boundary of the Fort Wingate Military Reservation to the original southwest corner thereof.

Northerly, along the original west boundary of the Fort Wingate Military Reservation to the point of beginning.

The tract described aggregates approximately 5,956 acres.

The lands are part of the Fort Wingate Military Reservation, as established by Executive Order of February 18, 1870, and enlarged by Executive Order of March 26, 1881.

ORME LEWIS,
Assistant Secretary of the Interior.

AUGUST 25, 1954.

[F. R. Doc. 54-6817; Filed, Aug. 30, 1954; 8:47 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF COMMERCE

Civil Aeronautics Administration

[14 CFR Part 612]

AERONAUTICAL FIXED COMMUNICATIONS

NOTICE OF PROPOSED RULE MAKING

Notice is hereby given that the Administrator has under consideration the following revision of Part 612 of the regulations of the Administrator. This revision deletes the requirement of § 612.2 (c) that commercial international communications facilities must be found inadequate in order to permit the acceptance and handling on government international aeronautical circuits of certain categories of international aeronautical messages originated by, or addressed to, aircraft operating agencies. In addition to certain editorial changes the revision also deletes the statement contained in § 612.3 respecting the adoption of these regulations on an interim basis and expressly provides in that section that any subsidiary telecommunication facilities required for the acceptance or delivery of messages must be provided by the user. Interested persons may participate in the making of the proposed rules by submitting such written data, views, or comments as they may desire. Communications should be submitted to the Director, Federal Airways, CAA, Washington 25, D. C., before September 30, 1954.

Sec.
612.1 Basis and purpose.
612.2 Acceptability of messages.
612.3 Assessment of fees.
612.4 Methods of payment.
612.5 Priority of transmission.
612.6 Limitation of liability.

AUTHORITY: §§ 612.1 to 612.6 issued under sec. 205, 52 Stat. 984, as amended, sec. 10, 62 Stat. 453; 49 U. S. C. and Sup., 425, 1159. Interpret or apply secs. 301, 302, 52 Stat. 985, sec. 606, 56 Stat. 1067; 49 U. S. C. 451, 452, 5 U. S. C. 606.

§ 612.1 *Basis and purpose.* The purpose of this part is to prescribe the types of messages pertaining to international or overseas aircraft operations which will be accepted for transmission by CAA communications stations and the fees which will be assessed for the transmission of certain types of these messages. The basis for the part is found in sections 301 and 302 of the Civil Aeronautics Act of 1938, as amended, and section 10 of the International Aviation Facilities Act of 1948.

§ 612.2 *Acceptability of messages.* (a) CAA Overseas Foreign Aeronautical Communications Stations, and CAA Interstate Airway Communications Stations located in territory (including Alaska) outside the continental United States will accept for transmission messages regarding international or overseas aircraft operations where such messages are of the following types:

(1) Distress messages and distress traffic.

(2) Messages for the safety of human life.

(3) Flight safety messages comprising:

(i) Air traffic control messages.

(*a*) Air traffic control messages concerning aircraft in flight or about to depart.

(*b*) Departure messages.

(*c*) Flight plan/departure messages.

(*d*) Arrival messages.

(*e*) Flight plan messages.

(*f*) Flight notification messages.

(*g*) Messages concerning cancellation of flight.

(*h*) Messages concerning delayed departure.

(ii) Position reports from aircraft.

(iii) Messages originated by an aircraft operating agency, of immediate concern to an aircraft in flight or to an aircraft about to depart.

(iv) Meteorological advice of immediate concern to aircraft in flight or about to depart.

(4) Meteorological messages comprising:

(i) Messages containing meteorological forecasts.

(ii) Messages containing exclusively meteorological observations.

(iii) Other meteorological messages exchanged between meteorological offices.

(5) Aeronautical administrative messages comprising:

(i) Messages regarding the operation or maintenance of facilities essential for the safety or regularity of aircraft operation.

(ii) Messages essential to the efficient functioning of aeronautical telecommunication services.

(iii) Messages exchanged between Government Civil Aviation Authorities relating to aircraft operation.

(6) Notices to airmen.

(7) Flight regularity messages comprising:

(i) Messages containing details of the number of passengers and crew, weight of cargo and other data required for weight and balance computation. Other remarks essential to the rapid clearance of the load from the aircraft may be included. These messages shall only be acceptable when addressed to the point of intended landing and to not more than two other addresses concerned in the general area of the route segment of the flight to which the message refers.

(ii) Messages concerning changes in aircraft operating schedules to become effective within 72 hours after the message is filed.

(iii) Messages concerning the servicing of aircraft, when the aircraft is en route or scheduled to depart within 48 hours.

(iv) Messages concerning changes in collective requirements for passengers, crew, and cargo, caused by unavoidable deviations from normal operating schedules and necessary for flight regularity in the case of aircraft en route or about to depart. Individual requirements of passengers or crew are not admissible in this type of message.

(v) Messages concerning non-routine landings to be made by an aircraft en route or about to depart.

(vi) Messages concerning parts and materials urgently required for the operation of aircraft en route or scheduled to depart within 48 hours.

(vii) Messages concerning the preflight arrangement of air navigation services, and operational servicing for non-scheduled or irregular operations of aircraft, filed within 48 hours of proposed time of departure.

(8) Reservation messages originated by aircraft operating agencies concerning the selling, releasing or regulation of weight or space capacity for goods or for the individual accommodation of passengers, aboard public transport aircraft scheduled to depart within 72 hours after the message is filed.

(9) Other messages originated by and addressed to aircraft operating agencies relating to international aircraft operations, overseas aircraft operations, or aircraft operations within a United States territory or possession which, by virtue of their importance, have a direct bearing on the efficient and economic conduct of the day-to-day operations of such agencies.

(b) CAA Interstate Airway Communications Stations located within the continental United States (excluding Alaska) will accept for transmission messages described in paragraph (a) (1) through (6). In addition, such stations will relay messages described in paragraph (a) which are originally accepted for transmission at CAA stations located outside the continental United States or are received from foreign stations of the integrated international aeronautical network, and which in normal routing require transit of the continental United States to reach overseas addressees.

NOTE: Third party messages or messages addressed to parties other than aircraft operating agencies or their representatives shall not be acceptable.

§ 612.3 *Assessment of fees.* (a) No fee shall be assessed for the transmission of a message which is of a type or types specified in § 612.2 (a) (1) through (7). A separate fee shall be assessed for the transmission to each addressee of a message which contain, in whole or in part, matter related to any of that described in §612.2 (a) (8) or (9).

(b) Only one fee per addressee shall be assessed regardless of the number of CAA communications stations through which the message may be sent. Each fee shall be computed on the basis of twenty-five cents for each ten words or portion thereof contained in the text and signature of the message. If delivery of the message involves refiling with a non-CAA communications facility, such refiling will be accomplished on a "Collect" basis at no additional cost to, or assumption of liability by, the CAA. Any subsidiary telecommunications facilities